

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

Section 2.7 — The International Framework: The UN Convention on the Rights of Persons with Disabilities

Sections 2.1 through 2.6 documented the federal *Accessible Canada Act* and five provincial accessibility statutes — Ontario, Manitoba, Nova Scotia, British Columbia, and Saskatchewan. Each comparator was developed in domestic legal-political contexts shaped by Canadian constitutional and statutory frameworks. Each comparator's substantive content, however, draws on a single shared international framework: the *United Nations Convention on the Rights of Persons with Disabilities* (UN CRPD or, in this section, the Convention). Section 2.7 documents the Convention, Canada's binding obligations under it, and the substantive standard the Convention establishes against which Alberta's policy choices are evaluated.

The Convention matters for this Part Two analysis for four specific reasons.

First, Canada is a State Party to the Convention. The Government of Canada signed the Convention on March 30, 2007 — the day the Convention opened for signature, and the first time in Canadian history Canada had signed a UN Convention on its opening day. Canada ratified the Convention on March 11, 2010, with the support of all provinces and territories. The Convention entered into force for Canada on April 12, 2010. Canada's ratification was advanced under the Conservative government of Prime Minister Stephen Harper, with then-Foreign Minister Lawrence Cannon and then-Human Resources Minister Diane Finley delivering the ratification at United Nations headquarters in New York City. In 2018, Canada acceded to the Optional Protocol to the Convention, which provides a complaints mechanism for individuals and groups whose rights have been violated. Canada is, in the most formal sense available under international law, fully bound by the Convention's provisions.

Second, the Convention's binding effect operates across the federation. Although the Government of Canada is the State Party, the Convention's obligations apply across all federal, provincial, territorial, and municipal jurisdictions. Canada's First Report under the Convention, submitted to the UN Committee on the Rights of Persons with Disabilities in 2014, explicitly acknowledged that *governments at all levels are responsible for implementing the Convention*. The Government of Canada consulted with the provinces and territories throughout the negotiation, signature, and ratification processes precisely because the Convention's obligations would bind provincial conduct as well as federal. Alberta is bound by the Convention. The Convention's obligations are not optional, and provincial policy choices that fail to meet the Convention's standards are not consistent with Canada's binding international commitments.

Third, the Convention establishes the substantive standard against which all six Canadian comparator frameworks examined in Sections 2.1 through 2.6 have been designed. The federal *Accessible Canada Act* references the Convention in its preamble and substantive provisions. The *Manitoba Accessibility for Manitobans Act* preamble cites the Convention explicitly. The *British Columbia Accessible British*

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Columbia Act requires statutory consideration of the Convention in standards development. The *Saskatchewan Accessible Saskatchewan Act* requires consideration of the Convention in standards development. The Ontario AODA and the Nova Scotia *Accessibility Act*, while less explicit in their statutory references, were both developed against the substantive backdrop the Convention establishes. The accumulated Canadian provincial accessibility legislative architecture is, structurally, the domestic operationalization of Convention obligations the federal government accepted on behalf of all provinces in 2010.

Fourth, the Convention's framework provides operational language directly applicable to Alberta's eventual blueprint legislation. The Convention's eight guiding principles, its general state-party obligations, and its specific articles on accessibility, independent living, education, health, employment, social protection, and other domains are directly translatable into provincial statutory provisions. Part Three's proposed Alberta legislation will draw on the Convention's substantive content directly, in the same way the comparator frameworks examined in Sections 2.1 through 2.6 have done.

Origin and Negotiation

The Convention was adopted by the United Nations General Assembly on December 13, 2006, after several years of negotiation in which Canada took an active role. The Convention was, at the time of its adoption, the first human rights treaty of the 21st century and the fastest-negotiated human rights Convention in UN history, completing the negotiation process in approximately five years — substantially faster than the typical decade-or-more timeline that prior major UN human rights instruments had required. The Convention was, additionally, the first major UN human rights Convention developed with active participation from civil society, particularly from organizations of and for persons with disabilities. The negotiation process operationalized the *Nothing Without Us* principle at the international-treaty level and produced a Convention text shaped substantively by the lived experience of the population the Convention was designed to protect.

The Convention opened for signature on March 30, 2007, with 82 signatories on the opening day — the highest number of opening-day signatories of any UN Convention in history. As of 2026, the Convention has been signed by approximately 164 States and ratified by approximately 191 States, including Canada and all comparable industrialized democracies. The Convention is, in this respect, the most widely-ratified human rights instrument in modern international law.

The Convention's opening-day signature by Canada on March 30, 2007 reflected the Canadian government's leading role in the negotiation process. Canada's federal Department of Foreign Affairs and International Trade, working with disability-community organizations including the Council of Canadians with Disabilities, Independent Living Canada, the Canadian Association for Community Living (now Inclusion Canada), and others, contributed substantively to the Convention's drafting. The Convention's substantive design reflects, in significant respects, Canadian disability-policy thinking and Canadian human-rights law as those frameworks had evolved through the late 20th century. Canadians can therefore claim a degree of authorship in the Convention, which makes the gap between Canada's international leadership in the Convention's development and Alberta's failure to implement Convention-consistent provincial legislation a particularly acute political contradiction.

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Canada's ratification on March 11, 2010, was preceded by extensive consultation with provincial and territorial governments, with self-governing Indigenous groups, and with the broader Canadian public through online consultations and stakeholder roundtables. The provinces and territories were directly consulted on whether they could implement the Convention's obligations in their respective jurisdictions and on whether they supported Canada's ratification. The provincial and territorial response was supportive; ratification proceeded with the support of all provinces and territories. Alberta's provincial government, as part of the consultation process, supported Canada's 2010 ratification of the Convention.

The Convention entered into force for Canada on April 12, 2010 — the date thirty days after Canada deposited its instrument of ratification with the UN Secretary-General. From that date forward, Canada has been bound by the Convention under international law and obligated to implement the Convention's provisions across all levels of Canadian government.

The Convention's Substantive Structure

The Convention contains 50 articles organized into a preamble, general principles and obligations, substantive rights provisions, implementation provisions, and final provisions. The substantive content is structured around a paradigm shift in disability policy: a move from the *medical model* of disability (in which disability is understood as an individual impairment requiring medical intervention or social protection) to the *social model* of disability (in which disability is understood as the interaction between an individual's impairment and societal barriers that prevent full participation). The Convention's preamble codifies this shift, stating:

Disability results from the interaction between persons with impairments and attitudinal and environmental barriers that hinders their full and effective participation in society on an equal basis with others.

The substantive paradigm shift has direct implications for state-party obligations. Where the medical model treats disability as a problem residing in the individual and addresses it through individual-level interventions, the social model treats disability as arising from society's failure to accommodate human variation and addresses it through systemic structural change. The state-party obligations under the Convention, accordingly, focus on identifying and removing barriers, designing accessible environments and systems, ensuring meaningful participation by persons with disabilities in policy development, and providing reasonable accommodation as a form of substantive equality rather than as an exceptional concession.

The Convention's substantive provisions can be grouped into three operational categories: *general state-party obligations* (the cross-cutting commitments every State Party must implement across all areas of policy), *specific rights provisions* (the substantive rights guaranteed to persons with disabilities under the Convention), and *implementation provisions* (the mechanisms for monitoring State Party compliance and enabling individual complaints). The remainder of this section examines each category in turn.

Article 3: The Eight General Principles

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Article 3 of the Convention codifies eight general principles that govern the Convention's interpretation and implementation. The principles function as both interpretive guidance and substantive obligations on State Parties. They are:

Respect for inherent dignity, individual autonomy including the freedom to make one's own choices, and independence of persons.

Non-discrimination.

Full and effective participation and inclusion in society.

Respect for difference and acceptance of persons with disabilities as part of human diversity and humanity.

Equality of opportunity.

Accessibility.

Equality between men and women.

Respect for the evolving capacities of children with disabilities and respect for the right of children with disabilities to preserve their identities.

The eight principles are operative provisions, not preamble. They appear in the body of the Convention and bind State Parties in the same way the substantive rights provisions bind them. The principles function as the legislative foundation against which any specific Convention provision is interpreted and against which any State Party's implementation is evaluated. The principles' presence in the Convention has been replicated in domestic Canadian legislation: the federal *Accessible Canada Act* (Section 2.1) codifies six implementing principles in Section 6 of the Act that are substantially similar to the Convention's Article 3 principles, and the comparator provincial frameworks examined in Sections 2.2 through 2.6 reflect equivalent principle-based design at the provincial-statutory level.

Article 4: General State-Party Obligations

Article 4 of the Convention sets out the general obligations every State Party assumes upon ratification. The obligations are extensive and operationally specific. State Parties undertake to:

Adopt all appropriate legislative, administrative and other measures for the implementation of the rights recognized in the present Convention.

Take all appropriate measures, including legislation, to modify or abolish existing laws, regulations, customs and practices that constitute discrimination against persons with disabilities.

Take into account the protection and promotion of the human rights of persons with disabilities in all policies and programmes.

Refrain from engaging in any act or practice that is inconsistent with the present Convention.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Take all appropriate measures to eliminate discrimination on the basis of disability by any person, organization or private enterprise.

Promote the development of universally designed goods, services, equipment and facilities.

Promote research and development, and the availability and use, of new technologies and assistive devices.

Provide accessible information about mobility aids, devices and assistive technologies.

Promote training of professionals and staff working with persons with disabilities.

The Article 4 obligations are systemic. They are not satisfied by isolated initiatives or individual-level accommodations. They require comprehensive review of all laws, regulations, policies, and practices affecting persons with disabilities; they require structural reform where existing measures are inconsistent with the Convention; and they require ongoing implementation work across all areas of governance. State Parties are obligated to *adopt all appropriate legislative, administrative and other measures*. The obligation is not optional, and the failure to adopt comprehensive legislation in any area where Convention rights apply is a documented gap in implementation that the UN Committee on the Rights of Persons with Disabilities is empowered to address through its periodic review process.

Article 4(3) imposes an additional structural obligation that is specifically relevant to this Part Two analysis. Article 4(3) states:

In the development and implementation of legislation and policies to implement the present Convention, and in other decision-making processes concerning issues relating to persons with disabilities, States Parties shall closely consult with and actively involve persons with disabilities, including children with disabilities, through their representative organizations.

The Article 4(3) obligation is the *Nothing Without Us* principle codified at the international-treaty level. It binds every State Party, including Canada, including Alberta. Disability legislation and disability policy must be developed in close consultation with and active involvement of persons with disabilities. Failure to consult is a Convention violation independent of the substantive content of the resulting legislation. Alberta's disability-policy practice, including the development of Bill 12 documented in Part One Section 1.4, raises substantial Article 4(3) concerns that are part of the public record and that have been documented by Alberta disability-community organizations.

Article 9: Accessibility

Article 9 of the Convention establishes specific State Party obligations on accessibility. The Article requires State Parties to:

Take appropriate measures to ensure to persons with disabilities access, on an equal basis with others, to the physical environment, to transportation, to information and communications, including information and communications technologies and systems, and to other facilities and services open or provided to the public, both in urban and in rural areas.

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The Article 9 substantive obligations include:

Identifying and eliminating obstacles and barriers to accessibility, in particular in buildings, roads, transportation, schools, housing, medical facilities and workplaces; and information, communications and other services, including electronic services and emergency services.

Developing, promulgating and monitoring the implementation of minimum standards and guidelines for the accessibility of facilities and services open or provided to the public.

Ensuring that private entities offering facilities and services open or provided to the public take into account all aspects of accessibility for persons with disabilities.

Providing training for stakeholders on accessibility issues facing persons with disabilities.

Providing in buildings and other facilities open to the public signage in Braille and in easy-to-read and understandable forms.

Providing forms of live assistance and intermediaries, including guides, readers and professional sign language interpreters, to facilitate accessibility to buildings and other facilities open to the public.

Promoting other appropriate forms of assistance and support to persons with disabilities to ensure their access to information.

Promoting access for persons with disabilities to new information and communications technologies and systems, including the Internet.

Promoting the design, development, production and distribution of accessible information and communications technologies and systems at an early stage, so that these technologies and systems become accessible at minimum cost.

Article 9 is the substantive backbone of Canadian accessibility legislation. Every comparator framework examined in Sections 2.1 through 2.6 operationalizes Article 9 obligations within its respective jurisdiction. The federal *Accessible Canada Act*'s seven priority areas (Section 2.1) directly correspond to Article 9 substantive domains. The provincial accessibility statutes' standards-development frameworks, plan requirements, public-feedback mechanisms, and enforcement architectures are, structurally, the operational implementation of Article 9 obligations at the provincial level.

The relevance to Alberta is direct and substantial. Article 9 obligations bind Canada at the federal level, but the substantive areas Article 9 addresses — buildings, roads, transportation, schools, housing, medical facilities, workplaces, information and communications systems — are predominantly within provincial jurisdiction. Alberta's failure to enact provincial accessibility legislation comparable to the comparator frameworks creates a gap in Canada's compliance with Article 9 obligations that the federal government cannot fill through federal legislation alone. The federal *Accessible Canada Act* covers approximately 6 to 8 percent of the Alberta workforce. The remaining 92 to 94 percent operate within an Alberta-specific accessibility void that is, on the Convention's terms, a documented Convention compliance gap.

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Article 19: Living Independently and Being Included in the Community

Article 19 of the Convention establishes State Party obligations on independent living and community inclusion. The Article requires State Parties to:

Recognize the equal right of all persons with disabilities to live in the community, with choices equal to others, and shall take effective and appropriate measures to facilitate full enjoyment by persons with disabilities of this right and their full inclusion and participation in the community.

The Article 19 substantive obligations include:

Persons with disabilities have the opportunity to choose their place of residence and where and with whom they live on an equal basis with others and are not obliged to live in a particular living arrangement.

Persons with disabilities have access to a range of in-home, residential and other community support services, including personal assistance necessary to support living and inclusion in the community, and to prevent isolation or segregation from the community.

Community services and facilities for the general population are available on an equal basis to persons with disabilities and are responsive to their needs.

The Article 19 obligation is, on the documented findings of the Committee on the Rights of Persons with Disabilities and on the documented analysis of Canadian disability-rights organizations, the Convention obligation Canada has been most extensively criticized for failing to meet. Article 19 requires support sufficient to allow persons with disabilities to live in the community on equal terms with others. The income inadequacy, the housing precariousness, the institutional placement risks, and the support shortages documented throughout Part One of this blueprint are, in Convention terms, Article 19 compliance gaps. The transition from AISH to ADAP examined in Part One Section 1.4, with documented income reduction, eligibility narrowing, and support uncertainty, is structurally inconsistent with Article 19's *equal right to live in the community* obligation. The Convention's framework provides the international legal language for what Part One documented in domestic policy terms.

The Reporting and Monitoring Architecture

Article 35 of the Convention requires State Parties to submit comprehensive reports to the Committee on the Rights of Persons with Disabilities every four years. The initial report is due two years after ratification; subsequent reports are due every four years thereafter. Canada submitted its First Report in February 2014. The First Report was reviewed by the Committee, which produced Concluding Observations in 2017 documenting both Canada's progress and the implementation gaps identified in the review. Subsequent reporting cycles have continued. The reports are public documents available through both the federal government's Department of Canadian Heritage and the United Nations.

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The Committee on the Rights of Persons with Disabilities is the body of independent experts established under Article 34 of the Convention to monitor State Party implementation. The Committee's Concluding Observations on each State Party's periodic reports document compliance gaps, recommend specific remedial action, and form the basis of subsequent reporting cycles' assessments of progress. The Committee also produces *General Comments* on specific Convention articles, providing interpretive guidance on the substantive content of State Party obligations.

The Committee's General Comment No. 5 on Article 19 (independent living and community inclusion), the General Comment most directly relevant to the Part One analyses of AISH, ADAP, and the broader Alberta disability income and program architecture, establishes that State Parties must move toward de-institutionalization, must provide community-based support that enables independent living on equal terms with others, must consult with persons with disabilities in the design of community-based supports, and must ensure that resource constraints do not justify continued institutional placement or inadequate community support. The General Comment is the operational interpretation against which Article 19 compliance is evaluated.

The Optional Protocol to the Convention, which Canada acceded to in 2018, provides an individual-complaint mechanism through which individuals or groups can submit complaints to the Committee about violations of Convention rights, after exhausting domestic remedies. The Optional Protocol's accession was supported by all provinces and territories, meaning Alberta is bound by the individual-complaint mechanism as part of Canada's Convention commitments. Individual complaints from Alberta residents about provincial disability-policy practices that violate Convention rights are available through this mechanism.

What the Convention Requires of Canada and Alberta

The Convention's requirements of Canada and, through Canada's federal-provincial structure, of Alberta are documented in the binding text of the Convention, in the Committee on the Rights of Persons with Disabilities' Concluding Observations on Canada's periodic reports, in the Committee's General Comments, and in the academic and policy literature on Canada's Convention compliance.

The Convention requires Canada to enact comprehensive domestic legislation implementing the Convention's obligations across all areas of governance. The federal *Accessible Canada Act* satisfies this requirement at the federal level. Provincial accessibility legislation is required to satisfy it at the provincial level. The five comparator provincial frameworks (Ontario, Manitoba, Nova Scotia, British Columbia, Saskatchewan) document what provincial Convention-implementing legislation looks like. Alberta has not enacted equivalent legislation. The gap is a Convention compliance shortfall.

The Convention requires Canada to consult closely with and actively involve persons with disabilities in the development of disability-related legislation and policy (Article 4(3)). The federal *Accessible Canada Act* was developed through extensive disability-community consultation. The five comparator provincial frameworks were developed through equivalent provincial-level consultations. Alberta's recent disability-policy reforms, including Bill 12 and the AISH-to-ADAP transition, were not developed through equivalent disability-community consultation. The Article 4(3) compliance shortfall is part of the public

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record.

The Convention requires Canada to identify and eliminate barriers to accessibility across all areas of public and private life (Article 9). The federal and comparator provincial frameworks each operationalize Article 9 obligations within their jurisdictions. Alberta's accessibility infrastructure, in the absence of comprehensive provincial legislation, is structurally inadequate to meet Article 9 obligations across the 92 to 94 percent of the Alberta workforce and population not covered by federal legislation.

The Convention requires Canada to ensure that persons with disabilities can live independently and be included in the community on equal terms with others (Article 19). The income inadequacy, support shortages, and program contraction documented throughout Part One of this blueprint create Article 19 compliance shortfalls in Alberta that the Convention's framework directly addresses.

These compliance shortfalls are not theoretical. They are documented in the public record through the Committee on the Rights of Persons with Disabilities' periodic review process, through Canadian disability-rights organizations' submissions to the Committee, through academic and policy literature on Canada's Convention compliance, and through the comparator legislative record itself. The Convention establishes the international legal framework within which Alberta's disability-policy choices are evaluated. Alberta's choices are, on the documented record, inconsistent with the Convention's obligations.

What This Section Establishes

The *United Nations Convention on the Rights of Persons with Disabilities* is the international human rights treaty that Canada signed on March 30, 2007 and ratified on March 11, 2010, with the support of all provinces and territories including Alberta. The Convention has been in force for Canada since April 12, 2010. Canada acceded to the Optional Protocol in 2018, providing for individual-complaint mechanisms. Canada is bound by the Convention under international law, and the Convention's obligations apply across all federal, provincial, territorial, and municipal jurisdictions.

The Convention establishes a comprehensive substantive framework for disability rights, including eight general principles (Article 3), extensive state-party obligations (Article 4, including the Article 4(3) close-consultation requirement that codifies *Nothing Without Us* in international law), specific provisions on accessibility (Article 9), independent living and community inclusion (Article 19), and the other substantive rights of persons with disabilities. The Convention is the substantive standard against which every Canadian comparator accessibility framework examined in Sections 2.1 through 2.6 has been designed.

The Convention's binding obligations on Canada have produced provincial accessibility legislation in five Canadian provinces and federal accessibility legislation at the national level. Alberta has not enacted Convention-implementing provincial legislation. The gap is a documented Convention compliance shortfall that exists notwithstanding Alberta's 2010 support for Canada's ratification of the Convention. Alberta supported Canada's ratification of an international human rights treaty and has subsequently chosen not to implement that treaty's obligations within its provincial jurisdiction.

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Section 2.8 lands the analysis Part Two has built across seven sections. Alberta is, on the documented Canadian and international record, the only English-speaking Canadian province west of Quebec without comprehensive provincial accessibility legislation, and the failure to enact such legislation places Alberta in a documented compliance shortfall under Canada's binding international obligations. The structural and analytic conditions for Section 2.8's prosecutorial conclusion are now in place. Section 2.8 examines what Alberta has chosen instead of comprehensive accessibility legislation and what the choice reveals.